

The Claremont City Council held a meeting on Wednesday, September 27, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski

Absent:

At-Large Councilor John Simonds

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett moved Ordinance 558 Hogback Road One-Way to first under Old Business.

MAYOR'S NOTES

Mayor Lovett's notes:

- Welcome to Abigail Kier.
- Remind anyone interested in running for Council to apply no later than Friday, 5 p.m.
- List on website under News shows who has signed up. There are still some vacancies. Additional name not on the list yet is Jeremy Zullo.
- NH Municipal Association Annual Conference is November 15 & 16. Overnight stay will not be reimbursed.
- September 15 Strategy Workshop for legislative actions
 - Legislation will be posted on City's website
- Last night there was a public forum for creating a host program for the Amtrak station. There was plenty of interest. A formal report will be made to the Council. Ridership rates continue to grow. It's on the way to becoming a medium station.

Ms. Towle thanked the Stevens High School groups for doing lots of projects around Claremont today.

CITIZEN'S FORUM

Bernie Folta, Ward 3, did not attend the Amtrak meeting. He talked about the Claremont Visitors Center, which is a Connecticut River Byway Waypoint Center and suggested a similar program could be arranged there for tourists over the weekends when staff is not available. He suggested Council Rules should be changed to allow public input on the first reading of proposed ordinances instead of waiting until the second reading.

OLD BUSINESS

Ordinance 558 Hogback Road One-Way – Second Reading – Public Hearing

The purpose of the proposed change is to amend Section 19-121, One-Way Streets, is hereby amended to add the following location: Hogback Road, from its intersection with Route 120 to Red Water Brook Road.

Public Works Director Scott Sweet said the Traffic Advisory Committee (TAC) has reviewed this. Letters have been sent to abutters. The abutters agreed the road should be a one-way, but not all agreed on the direction. The City feels that coming up the hill is more dangerous. The road is very narrow.

Mr. Temple read the ordinance into the record.

A motion was made by Mr. Temple and seconded by Mr. Damren to adopt Ordinance 558 Hogback Road One-Way.

Mayor Lovett opened the public hearing.

Larry Duval, owns property on Hogback Road and Route 120 that adjoins it. He agreed that entrance onto Rte. 120 is dangerous. His main concern is being able to get his tractor from one driveway on his property to the other without having to travel 1.2 miles to go around. He said the exit onto Rte. 120 is not at a 90-degree angle, which makes it dangerous. He said 75% of the people exiting Winter Street do not stop at the Stop sign.

Mayor Lovett stopped the 5-minute time limit for this discussion.

Mr. Duval was concerned about delivery trucks and the narrowness of the road. It is narrowest at the north end. Boulders have been placed on a private property at that end. From Hogback to Red Water Brook Road, the visibility is affected by trees. If Hogback is made one-way, he wants to know how it will affect his property value.

Dennis Ploof said he has lived on top of Hogback for 45 years. His wife has had two accidents going up. He's happy to make it a one-way. He would like to see it come down from Rte. 120 to Red Water Brook Road. His wife's mother lives in Cornish and they have to go up Jackson Road quite a bit. In winter, having to come up on ice or snow is dangerous. He would like to see a speed limit sign posted. He has seen people get airborne. It's a bad crown. Fuel deliveries are no problem in his yard.

Bernie Folta, Ward 3, questioned the make-up and authority of the TAC. He wished it included at least one citizen.

Mayor Lovett closed the public hearing.

Mr. Pope asked about making the road for local traffic only. Mr. Sweet said that people would disregard the sign and use it regardless.

Mr. Raymond said he avoids Hogback because you can't see over the crest even in a truck. He is in favor of it being one-way, whichever way is safest.

Mr. Koloski said regarding emergency response, that it makes sense to go down the hill (keep as presented). As far as farm tractors, he asked if something could be written into the ordinance. He likes the idea of local traffic only, but there are issues.

Mr. Temple asked about making road improvements. He said the road is narrow and residents put out rocks and bushes which makes it narrower. On a snowy night, there's not enough room to plow. He thinks it is about 15 feet wide.

Regarding the speed limit sign, Mr. Sweet said he would come back with that at another time.

Roll call vote: motion carried 6-2 with Messrs. Pope and Koloski voting no.

Mayor Lovett said she voted yes, but wants a follow-up to Mr. Duval's concerns.

Mr. Koloski said he voted no because there wasn't information available regarding Mr. Duval's concerns about his tractor.

Police Chief Mark Chase will follow-up to see if there is an ATV trail that may be available.

Ordinance 556 Open Burning – Second Reading – Public Hearing

The purpose of this proposed change is to establish procedures and a permitting system to the Claremont City Code regarding outside fires, other than those related to gas or charcoal grills, heating devices or uses related to construction or maintenance activities.

Enactment of this Ordinance will revise Chapter 6, Fire Codes & Enforcement by adding provisions to establish procedures and a permitting system to regulate open burning within the City limits.

A motion was made by Mr. Damren and seconded by Mr. Raymond to adopt Ordinance 556 Open Burning.

Mr. Damren read the explanation of proposed action into the record.

Fire Chief Rick Bergeron said there needs to be a minor change on page 3. MUHD (Municipal/Hospital Dist.), Category 1 column should have been a Yes. There are some lots of size on the west side of Elm Street where it is not unreasonable to have camp fires.

Council considered this a substantial change and it will need to go back to first reading.

There was a discussion about residents knowing when it was safe to have fires. Chief Bergeron said Class 2 and 3 fire permits are given out for only 3 or 4 days. Class 1 permits are annual. He can include in the handout that is given to contact the Fire Department before burning.

Mr. Damren suggested that Council direct the City Manager to come up with an effective way to make the notification and to include that information under Section 6.14 C.

Mayor Lovett opened the public hearing.

Bernie Folta, Ward 3, suggested that the zones should be matched with the Zoning Ordinance.

Mayor Lovett closed the public hearing.

Voice vote: motion failed 0-8 with all voting no.

Resolution 2018-9 Supplemental Appropriation for Solar Array at Wastewater Treatment Plant – Public Hearing

WHEREAS the City of Claremont, New Hampshire, wishes to reduce electricity costs at the Waste Water Treatment Plant and, after studies were done on various locations a site has been located for the solar array, allowing the city to significantly reduce the electric costs for the Waste Water Treatment Plant;

NOW THEREFORE BE IT RESOLVED by the Claremont City Council, to raise, appropriate and expend the sum of \$320,000.00 to the 2018 Sewer Division Budget, such purpose being for installation of a 151 kW solar array system at the Wastewater Treatment Facility.

BE IT FURTHER RESOLVED that said sum, \$320,000 is to come from the Sewer Enterprise Fund, retained earnings, with no impact on the tax rate.

Jack Ruderman, Director for Community Solar Initiatives Revision Energy, showed a PowerPoint.

- Claremont Waste Water Treatment Facility, 432 solar panels, 151 kW
- Annual Generation = 190,500 kWh (projection)
- Project Economics
 - o System cost \$319,264
 - o 15 year savings \$40,000
 - o 20 year savings \$170,000
 - o 30 year savings \$464,000
 - o 40 year savings \$836,000
 - o Based on conservative estimates of utility rates
- 40 Year Cost of Energy
 - o Current 10cents per kWh
 - o Solar locks in at 5 cents per kWh
 - o 800,000 kWh annual at WWTP, offset 25%
- Data monitoring
 - o Budgeted funds for TV monitor & signage for WWTP
- Marketing Department Will Promote the Solar Technology

Ms. Towle asked what the cost would be to replace the inverter. Mr. Ruderman said \$9,000.

Mr. Ruderman said the City determined it was not cost effective to go with net metering. Currently the City uses a competitive supplier and the cost is lower. The proposed system can supply up to 100% of the plant's need on a given day, but not beyond that.

Mr. Ruderman said there is a 5-year warranty for workmanship. Solar panels have a 12-year product warranty and a 25-year linear performance guarantee. Each year you lose some output. After 25 years they will be at 83%. Inverter 12-year warranty with a life expectancy of 20 years. Payback is expected in 12-13 years. Ms. Walter said that is conservative. Mr. Ruderman said there is no battery back-up at this time, too expensive. When prices go down, they can be added to the system. No maintenance is needed during the winter months. The panels are 3-4 feet off the ground, so the snow will slide off. The modeling takes into account a few weeks when the production is minimal or nil. There is no need to clean the panels.

Mr. McNutt asked about the tariff on imported solar panels. Mr. Ruderman said if the City commits to the project, it can avoid the impact tariffs. A shipment of panels is due in the next 6 weeks or so and they can set aside the City's panels if the project is agreed upon. There are no U.S. solar panel manufacturers.

Victor St. Pierre, Assistant Public Works Director, said the highest electric usage was for the street lights and that has been cut in half. The second highest usage is the WWTP. This proposal will bring the load down. The third largest user is the Community Center and they are working on a proposal to reduce that.

Mr. Temple asked how this will affect the agreement with Utility Partners. Mr. Ruderman said the panels will be installed in May or June. Ms. Walter said the contract with Utility Partners will run out in June, so it will be part of the negotiations.

Ms. Walter said the funds for this will come from Sewer retained earnings. Sewer has about \$3 million in retained earnings.

Mr. Temple said he thinks this is a wonderful idea. The Sewer Enterprise fund is paid by the users and not the City as a whole. We've taken some money out to fund sewer projects. He asked at what point do we revisit the rates. Mayor Lovett said it is on the next meeting agenda for discussion.

A motion was made by Mr. Damren and seconded by Ms. Towle to adopt Resolution 2018-9 Supplemental Appropriation for Solar Array at Wastewater Treatment Plant.

Mr. Damren read the resolution into the record.

Mr. Koloski asked if this will allow for future expansion. Mr. Ruderman said yes.

Mayor Lovett opened the public hearing.

Bernie Folta, Ward 3, said the Waste Water Treatment Plant (WWTP) produces methane. He asked if the methane is used for heating. He wondered if there needs to be a retained earnings policy for sewer and water enterprise funds. He wondered about the TIFD borrowing some of the excess funds

Mayor Lovett closed the public hearing.

Roll call vote: motion carried 8-0.

Mr. McNutt said there will be road projects on Main Street September 28 – October 4 and the two travel lanes on Washington Street in the middle of October.

Ordinance 557 Naming City-owned Property – Second Reading – Public Hearing

The purpose of this proposed change is to establish procedures and criteria for naming city-owned property, including streets.

Enactment of this Ordinance will revise Chapter 16, by adding a new Article V, Naming of City-Owned Property.

A motion was made by Ms. Kier and seconded by Mr. Damren to adopt Ordinance 557 Naming City-owned Property.

Ms. Kier read the explanation of proposed action into the record.

Mr. Pope said the Policy Committee came up with this.

There was a discussion about street names and commemorative names and that the commemorative names create confusion.

Fire Chief Rick Bergeron expressed concern that the honorary street names may be in violation of state 911 addressing regulations.

Mr. McNutt said potential regionalization could be affected by the use of commemorative names.

Ms. Kier asked to confirm the terminology regarding Historic District Commission approval; and naming a street after a person using first and last name.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call / Voice vote: motion failed 0-8 with all voting no.

There was a consensus of the Council to make changes and to go back to first reading.

Mayor Lovett asked to put it on the October 25th agenda.

NEW BUSINESS

Motion to Accept Pet Oxygen Masks from Canine Company

Chief Bergeron said there have been occasions in the past to use these. This company offered to donate a pet oxygen kit to the City.

A motion was made by Mr. Raymond and seconded by Mr. Damren to accept with sincere appreciation a gift of Pet Oxygen Masks with a value of \$150.00 from the Canine Company.

Voice vote: motion carried 8-0.

Motion to Accept OHRV Enforcement Grant

Police Chief Mark Chase said the Police Department has been applying for this grant for upwards of 10 years. This allows the Police Department to supplement trail patrols. It is for approximately 60 hours

Mr. Raymond asked about the 10-mph speed limit on Cat Hole Road. Chief Chase said people are generally adhering to the speed limit. Chief Chase said the state would allow up to 20 mph, but he recommends keeping it at 10 mph.

A motion was made by Mr. Pope and seconded by Ms. Kier to authorize the City Manager, or his designees, to accept a grant in the amount of two thousand, seven hundred dollars (\$2,700.00) and to enter into an agreement with the State of New Hampshire Fish and Game Department for the purpose of Off Highway Recreational Vehicle enforcement by the Claremont Police Department.

Voice vote: motion carried 8-0.

Review of Ordinance Pertaining to Dogs

Mayor Lovett suggested moving Review of Ordinance Pertaining to Dogs; Discussion of Sidewalk Conditions; and Property Tax Exemption for Commercial and Industrial Businesses Discussion to the next meeting because of the late hour.

Mayor Lovett said the information given to her regarding a dog bite was incorrect. The person who was bitten did confirm the dog was on a leash. The City Code states dogs must be restrained by leash or vocal commands. She would like to ask at the next meeting for guidance of what to do with this ordinance.

Mayor Lovett said there will be a Keno public hearing on October 19, 6-7 p.m. Mr. Pope said that is the same time as the Policy Meeting.

Discussion of Sidewalk Conditions

Moved to next meeting.

Mayor Lovett said the City Code regarding sidewalk construction (dated 1989) needs to be addressed. She would like a workshop regarding sidewalk liability; maintenance; resources; what is the City plan for sidewalk aesthetics; uniformity; and does this need to go to the Planning Board for updating.

Property Tax Exemption for Commercial and Industrial Businesses Discussion

Moved to next meeting.

Mr. Damren talked about an article he read: Federal Reserve Bank of Boston, Fall 2013 "The Effective Use of Property Tax Incentives for Economic Development. Effective property tax incentives have five criteria: do not approve all requests; take targeted approach; [note: he has a call in to Barbara Reed, NHMA, for her opinion regarding the ability to choose only certain sections of the City] avoid incentive wars is an exercise in futility; don't compete, cooperative, do something regional; and evaluate effectiveness.

Mayor Lovett said there will be a non-meeting after this meeting to discuss collective bargaining.

Mayor Lovett had distributed to the Council an excerpt of a Federal Highway guide to maintain pedestrian facilities. Laws & liabilities.

Mr. Temple said regarding future sidewalk discussions, he suggested the Administration look up all the research the City Center Group did regarding sidewalks. Mayor Lovett asked Mr. McNutt to send that information to the Council.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Damren said State Representative Gauthier is working with DRA to arrange a Current Use forum in Claremont on November 13. He will confirm that date with DRA and then get with Mr. McNutt to schedule a venue.

Mr. Temple said the Governor and Council will hold a Ten-Year Plan meeting in Sullivan County. Claremont has several projects on that plan. He thanked State Representative Cloutier for the work he did to get that meeting in this part of the state.

Mr. McNutt said the Governor will come to Claremont in October. As soon as he knows a firm date, he'll let Council know.

Mr. Koloski said regarding not allowing similarly named streets that we have Riverbend Plaza and Riverside Marketplace. He asked how to address that. Mayor Lovett asked him to send the information to the Planning Board Chair and to copy Mr. McNutt.

Mr. Koloski talked about Tom Tom trying to access the City's map data. He would like that information to be used and asked to have that looked at. Mr. McNutt said he will follow-up.

Mr. Koloski said his restaurant will host a dinner for boards and commissions members at no cost to the City. He'll send the information to Ms. Russell. Ms. Towle will help with that.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

At 9:32 p.m. a motion was made by Mr. Pope and seconded by Ms. Kier to go into the Non-Public Session pursuant to RSA 91-A:3,II(a) – Personnel and to invite Mr. McNutt into the session.

There was a discussion about meeting in a non-public session versus a non-meeting for collective bargaining.

Roll call vote: motion carried 7-1 with Mr. Koloski voting no because of the confusion.

At 10:21 p.m. motion was made by Mr. Raymond and seconded by Mr. Temple to re-enter the public session.

Roll call vote: motion carried 8-0.

A motion was made by Councilor Temple, seconded by Councilor Towle to seal the non-public minutes of Sept 27, 2017 because it is determined that this information regards a confidential personnel matter and that such minutes are to remain sealed unless or until the purpose for which the information discussed has been requested to be sealed no longer applies. A roll call vote was taken- Towle yes, Pope yes, Raymond yes, Damren yes, Kier yes, Temple yes, Koloski yes, Lovett yes. Motion passed.

Upcoming meetings noted as Oct 10, Non-Public Meeting re: Personnel and October 11 will have a non-meeting for collective bargaining beginning at 6:00 PM immediately preceding the regular council meeting.

ADJOURNMENT

At 10:45 p.m., a motion was made by Mr. Temple and seconded by Ms. Towle to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council